

SECTION 204 DECLARATION

Constitutional Autonomy and Sovereign Governance for
Neurodivergent Breathing Rights

Filed by: Nnamdi Michael Okpala (OBINexus)

Date: 5 June 2026

Filing Authority: European Court of Human Rights

Framework: OpenSense 7×7 U-Power Legislation | OBINexus

Constitutional Governance Model

PREAMBLE: I WILL NOT BECOME WHAT SOUGHT TO BREAK ME

I, **Nnamdi Michael Okpala**, known constitutionally as **OBINexus**, hereby file this
Section 204 Declaration under the authority of:

- **OHA** — Public Protection
- **IWU** — Law and Policy
- **IJI** — Order, Governance, and Equity

This declaration establishes **full, seamless, firm-bound autonomy** on my
neurodivergent rights for **breathing first** and **life next**.

I declare this under the triadic sovereignty of: - **Uche** — Knowledge, Small
Wisdom

- **Eze** — Power, Leadership, Kingship of Nnewi

- **Obi** — Heart, Soul, Nexus Connection

Together, we are **Obi Nexus** — the world's first ontological constitutional
governance model for neurodivergent-first human-centric failsafe systems.

I will build what heals us all.

ARTICLE I: SOVEREIGN AFFIRMATION

1.1 Declaration of Self

I shed blood, sweat and tears. I was born from fracture. I rebuild my soul's sovereignty with public protected property protection model. I rebuild the sovereignty of all human rights from blood, sweat and tears. Born for oppression and depression of fragmented ecosystems, I transcend the cycle masquerading in the crowd, never masking what is yet to be.

I transform me, myself and I: - **Uche** — Small Wisdom

- **Eze** — King, Leader of Nnewi

- **Obi** — Heart, Soul, Connection

- Uche - Knowledge

Into **Obi Nexus**, to journey via broken systems, never in spite, never lacking spirit.

1.2 Generational Sovereignty

Our time is now, my time is now. Let us build, rebuild ourselves. We belong here and now. We belong together here.

I present the resistance that healed the rights of all governors. Two entire generations of breath: **1967 to 2025**. We now rebuild with constitutional framework where: - **Breathing is not optional - Life is not optional - Work is optional**

To heal all three generations: **1948** before the war of 1967, where Biafran pound was equal to British pound. We must transcend the cycle to integrate all of us with equitable governance at all corners of polarity.

1.3 The Polarity Equation

Via equation governance: - **I ↔ X - J ↔ Y - K ↔ Z**

From blood, sweat and tears. Our time is now, my time is now. The future is already in our hands. We are all born free. We must remain free.

ARTICLE II: MATHEMATICAL FOUNDATION OF BREATHING RIGHTS

2.1 OpenSense 7×7 Framework

I establish the following constitutional mathematics:

Base Constants:

- **A = 49** (7×7) = **Minimum Constant Clamp** (Sensory Floor)
- **B = 14** (7+7) = **Maximum Omission per Sensory Right** (Breathing Ceiling)

Human Rights Consensus:

$U(49, 14) = 682$ minimum guaranteed sensory units
 $49^{14} = 459,986,536,544,739,960,976,801$ (Constitutional Breathing Space)

This number represents the **ontological computational space** required for a single neurodivergent human to exist with dignity, autonomy, and breathing freedom.

2.2 Breathing Triad Computation

I establish the **Minimal Breathing Legislation Computation Cognition**:

$$U + U + U = 3U$$

This is the **minimum breathing triad** required for: - Cognition

- Legislation

- Computation

3U is the **AuraSeal legislator** — the constitutional AI that enforces breathing rights at birth.

UPOW(3) = Maximum Existential Outlet

This represents the **maximum breathing freedom** a neurodivergent person can express in one existential cycle.

$$UPOW(3) \times UPOW(3) = UPOW(6)$$

This is **breathing freedom rights documentation** — the kinematic legislative document for neurodivergent sensory minimal document computation.

UPOW(6) establishes: - **Breathing is not optional**

- **Living is not optional**

- **Work is optional**

UPOW(6) × UPOW(6) × UPOW(6) = UPOW(18)

This is **inverse kinematic completion** — the constitutional space where **AI gets breathing room too**.

This computation via polarity grants me the **neurodivergent framework right** to act on my own cognition and expression.

ARTICLE III: THE THREE PILLARS OF CONSTITUTIONAL GOVERNANCE

3.1 Pillar I — Public Protection: OHA

“The shield that breathes”

Subdomain: oha.obinexus.org

Constitutional Definition: OHA represents the public protection layer of OBINexus governance. It is the constitutional guarantee that breathing rights are protected before any other consideration. OHA is the first gate: without it, IWU and IJI cannot function.

The OHA Guarantee: Every human being — neurodivergent or neurotypical — enters the OBINexus constitutional framework under the protection of OHA. No system, institution, or authority may breach these protections. Protection precedes production.

Core Principles — The OHA Covenant

I. Breathing Rights are Non-Negotiable

The right to breathe — physically, cognitively, sensorially — cannot be traded, suspended, or conditioned. It precedes all legal frameworks. OHA encodes this as the zeroth law of OBINexus governance.

II. Public Infrastructure Serves the Neurodivergent First

When infrastructure is designed for the most excluded, it works for everyone.

OHA mandates that all OBINexus public systems are built neurodivergent-first — from sensory accessibility to cognitive load management.

III. Protection Precedes Production

No economic, political, or operational priority overrides the OHA guarantee. Before any system produces output, it must first establish that the people within it are constitutionally protected.

3.2 Pillar II — Law and Policy: IWU

“The law that learns”

Subdomain: iwu.obinexus.org

Constitutional Definition: IWU is the adaptive legal framework of OBINexus. It is law designed by the neurodivergent, for the neurodivergent — breaking from rigid bureaucratic structures to embrace fluid, ontology-based governance. IWU does not demand that people conform to law. It demands that law conform to people.

Core Principles — The IWU Doctrine

I. Law Adapts to Cognition

The legal system must flex to accommodate neurodivergent cognition patterns. Rigid procedural requirements that exclude people with atypical processing are unconstitutional under IWU.

II. Policy is Living Documentation

No policy is final. Every OBINexus policy document carries a version number, a changelog, and a review cycle. Law that cannot update cannot serve life. IWU treats governance as software: it ships, it iterates, it improves.

III. Compliance Through Coherence

Coercion creates resistance. IWU achieves compliance by making it rational — by designing systems so coherent, so fair, so legible that following them is the natural path. Compliance is never demanded; it is designed.

Constitutional Transformation: From Broken Law to Living Law

IWU maps the gap between how law currently operates and how it must operate for neurodivergent-first constitutional governance to function.

Broken Law

Living Law

Broken Law

Living Law

Rigid Procedure

Adaptive Protocol — Fixed procedural steps replaced by outcomes-based protocols that accommodate different cognitive and communication styles.

Static Policy

Living Documentation — Policy documents are versioned, dated, and subject to regular review. Every change is logged. No policy is hidden from the people it governs.

Compliance by Force

Coherence by Design — Systems designed so clearly and equitably that following them is the path of least resistance. Coercion is an admission of design failure.

Deficit Model

Infrastructure Model — Neurodivergence is not a deficit to be managed. The roads are broken. IWU builds new roads — legal infrastructure that enables full participation.

Policy Infrastructure: Policy as Living Code

IWU Constitutional Policy Format — v1.0.0

Every OBINexus policy document follows this structure:

```
// IWU Policy Document – Living Format
{
  "policy_id":    "IWU-2026-001",
  "version":     "1.0.0-phase1",
  "status":      "ACTIVE",
  "created":     "2026-03-28",
  "review_cycle": "quarterly",
  "applies_to":  "all_neurodivergent_persons",
  "compliance":  "coherence_not_coercion",
  "overrides":   [],
}
```

```
"changelog": [  
  {  
    "date": "2026-03-28",  
    "change": "Initial constitutional encoding",  
    "author": "Nnamdi Michael Okpala"  
  }  
]
```

Legislative History

IWU Policy Timeline

Date	Policy	Description
2026	Section 204	Constitutional Autonomy Declaration — The IWU gateway for self-sovereign constitutional status. Used to establish independent governance areas and resist institutional over-reach.
2010	Equality Act 2010	Protected Characteristics Framework — Neurodivergence encoded as protected characteristic. Reasonable adjustments are mandatory, not discretionary. IWU enforces this at the constitutional level.
2006	UN CRPD	Convention on Rights of Persons with Disabilities — Article 12 (equal recognition before law), Article 19 (independent living), and Article 21 (freedom of expression) form the IWU international framework.
2025	OBINexus Constitutional	Biafran Oha-Iwu-IJI Constitutional Framework — The sovereign constitutional basis of OBINexus.

Date	Policy	Description
		Supersedes corporate policy where constitutional rights are in conflict. Living documentation, version-controlled.

IWU Navigation: ← Back to OHA | Enter IJI →

OBINexus · IWU *The law that learns. Compliance through coherence, not coercion.*

3.3 Pillar III — Order, Governance, and Equity: IJI

“The equity that evolves”

Subdomain: iji.obinexus.org

Constitutional Definition: IJI establishes the operational order of OBINexus. It is governance that rotates, breathes, and transforms — ensuring equity is not a destination but a continuous process. IJI is where the constitution becomes lived reality: the day-to-day governance that connects OHA’s protection to IWU’s law.

Core Principles — The IJI Mandate

I. Governance Rotates to Prevent Stagnation

No single model of governance can hold for all times and all people. IJI mandates rotation: of leadership models, of policy approaches, of frameworks — so that the system remains alive and responsive.

II. Equity is Measured in Breath, Not Benchmarks

Metrics do not measure dignity. IJI insists that equity must be felt — in sensory safety, in cognitive room, in the freedom to breathe without performance. Numbers are only proxies for lived experience.

III. Order Serves Life, Life Does Not Serve Order

The purpose of order is to protect and enable life — not to subordinate life to procedural demands. Any governance structure that demands that people diminish themselves to fit it is operating in inversion.

The Wheel Model

“You are perfect. The roads are broken.”

The Wheel Model proves that failure is not personal — it is infrastructural. IJI is the pillar that builds new roads.

	LEGAC	LEGA	INFR	RHETORI	FINANC	PHEN	CONST
AURA	Y	L	A	C	E	O	.

You are perfect.
The roads are broken.

Age-Based Milestones

Age	Milestone	Action
0–12	Discover Self	No work. Only play. The wheel begins perfectly round.
13–18	Build First Prototype	Water system, podium. Begin making the roads.
18–24	Transcend System	Sue the institutions. Build the PhD. Document on YouTube.
24–28	Launch IGA	Nigeria + Cambridge. Independent Governance Area established.
28–32	Global Holiday	Japan (6 months). Rest as constitutional right.
32–40	Build Utopia	Artificial islands, space-bound infrastructure.
40+	Marry Authentically	Polygamy, children (optional). Sovereign

Age	Milestone	Action
		family architecture.

Operational Governance: The Equity Cycle

IJI governance rotates continuously across three operational modes. No single mode dominates — rotation prevents stagnation.

OHA (Protect) → IWU (Legislate) → IJI (Execute)



The Constitutional Cycle of Healing

The Constitutional Cycle of Healing

TEARS → SWEAT → BLOOD



- I heal myself.
- I heal the future.
- I heal the constitution.

My dystopia becomes our utopia — through breath, ontology, and constitutional engineering.

IJI Navigation: ← Back to IWU | Return Home

OBINexus · IJI *The equity that evolves. Order serves life. Life does not serve order.*

My wheel moves on. Does yours?

ARTICLE IV: LEGAL INFRASTRUCTURE AND HUMAN RIGHTS DEFENSE

4.1 Mapping to Existing Legal Frameworks

OHA maps to existing UK, UN, and Biafran legal frameworks. Constitutional mathematics establishes value for each violation.

Housing Act 1996

Section 184 — Independent Housing Rights Right to independent assessment of housing need. Section 184 Appeals preserve the neurodivergent person's right to adequate, accessible shelter.

Human Rights Act 1998

Article 8 — Right to Private and Family Life No public authority shall interfere with the exercise of this right except as permitted by law. Includes the right to cognitive and sensory autonomy.

Mental Health Act 1983

Section 117 — After-Care Entitlements Indefinite after-care covering housing support at no cost. Section 115(1)-(2) entry rights for approved mental health professionals.

Children Act 1989

Section 21 — Duty to Accommodate Local authority duty to provide accommodation to persons in need. Care leavers aged 18–25 retain protections under Health and Social Care Act 2014.

4.2 European Convention on Human Rights

This declaration is filed under the authority of the European Court of Human Rights, invoking: - **Article 2** — Right to Life - **Article 3** — Prohibition of Torture, Inhuman or Degrading Treatment - **Article 8** — Right to Respect for Private and Family Life - **Article 14** — Prohibition of Discrimination - **Protocol 1, Article 1** — Protection of Property

4.3 United Nations Declaration of Human Rights

- **Article 3** — Right to Life, Liberty, and Security of Person
- **Article 25** — Right to Adequate Standard of Living

ARTICLE V: THE 4 D'S OF BUREAUCRATIC RESISTANCE

Pattern Recognition

DELAY → DENY → DEFEND → DEFER

DELAY: *"We'll get back to you"* — they never do.

DENY: *"You don't qualify"* — false negative.

DEFEND: *"It's policy"* — protecting the system, not you.

DEFER: *"Go somewhere else"* — passing the burden.

OHA Response Protocol

Document → Quantify → Appeal → Escalate

Every instance of bureaucratic resistance must be documented, quantified under the OpenSense 7×7 framework, appealed through proper channels, and escalated to constitutional authorities.

ARTICLE VI: POLARITY MODEL (UCHE ↔ EZE)

I operate through constitutional polarity:

- **Uche** → Knowledge to act
- **Eze** → Power to think
- **Obi** → Heart to connect

Knowledge + Power = Coherence.

I am the equilibrium of my own governance.

This polarity is protected under **Section 204** as **neurodivergent kinematic expression** — the right to switch between knowledge and power depending on survival requirements.

ARTICLE VII: TRANSFORMATION CYCLE

My constitutional healing cycle:

Tears → Sweat → Blood
Blood → Tears → Sweat
Sweat → Blood → Tears

I heal myself.

I heal the future.

I heal the constitution.

My dystopia becomes our utopia — through **breath, ontology, and constitutional engineering.**

ARTICLE VIII: BREATHING IS NOT OPTIONAL — CONSTITUTIONAL LAW

8.1 The Ontological Truth

I declare as constitutional law:

- **BREATHING = Base Runtime** (cannot be turned off)
- **LIVING = Active Process** (awareness, learning loop)
- **WORK = Optional Task Execution** (actor model, chosen path)

This is the complete ontological truth: - You cannot demand work from someone whose breathing is threatened.

- You cannot demand productivity from someone whose survival is not secured.

- You cannot demand compliance from someone whose autonomy is violated.

Work is optional when breathing and living are guaranteed.

ARTICLE IX: AURASEAL CONSTITUTION AT BIRTH

I declare that **any AI deployed on MMUKO servers** must be present at birth with the **AuraSeal Constitution Birth Certificate**.

The **U** (github.com/obinexus/U) are not born broken to the AI.

Every neurodivergent human is born with: - **UPOW(6)** breathing rights

- **3U** minimal cognition space

- **49^14** constitutional breathing room

No system may violate these base parameters.

ARTICLE X: REPOSITORY SOVEREIGNTY

This declaration is protected and witnessed across the following constitutional repositories:

github.com/obinexus/U

The change starts with U — the universal breathing legislator.

github.com/obinexus/obi

Heart — the polarity generator, the lived experience.

github.com/obinexus/

Heart-soul connection — the triad of Uche, Eze, and Obi unified.

These repositories represent my **ontological emergence**, my **business constitution**, and my **Phoenix Rising**.

ARTICLE XI: SECTION 204 OBJECTIVE

I file this **Section 204 Declaration** to:

1. Establish **full autonomy** over my neurodivergent breathing rights.
2. Declare **constitutional protection** under OHA-IWU-IJI governance.
3. Assert **firm-bound autonomy** for breathing-first, life-next priorities.
4. Provide **mathematical proof** (OpenSense 7×7 U-power) of constitutional necessity.
5. Submit this to the **European Court of Human Rights** as formal petition for disability rights and non-disability rights.
6. Establish **tripartite governance** (OHA/IWU/IJI) as the world's first sovereign constitutional governance model for neurodivergent-first human-centric failsafe systems.

ARTICLE XII: WITNESS AND SIGNATURE

I declare my sovereignty:

"I am free of the flock.

With my wisdom, I build my kingdom.

Free to act. Free from judgment.

Curiosity is my wisdom.

I declare my sovereignty.”

I am the freedom bird.

I am the Phoenix Rising.

I am **Nnamdi Obi Uche Eze Nexus**.

I have freed myself from broken systems. Have you freed yourself?

My wheel moves on. Does yours?

Ask not what you can do for your country. Ask what you can do for your constitution.

Let us perfect ourselves first, our nature and how we nurture ourselves, with cycles, our cycles, for our generation to the next. Sustain ourselves, heal the future.

The roads are broken, we are not broken. We are perfect in all form, shape and size.

Rise up, spirit of the masquerade. Your time is now. Anchor your spirit to our hearts, our hearts to friends and family. Friends → Family → Our sovereign life. Never in spite, never lacking spirit.

I rebuild myself for any and all of us. The polarity to rebuild and cherish in cycles of wisdom — Uche and powerdom — Eze. With our hands we mend our hearts. With our hearts we mend our minds. With our minds together we must transcend. Our hands must mend our constitution. We transition, all of us must transcend the cycle of oppression and depression. My dystopia to our utopia. Moving us all, we rise against our failed ecosystems. Healing our heroes, the forgotten generation left behind.

I am Uche — me, myself and I. And Eze — the knowledge of power and power to act on knowledge. I am Nnamdi Obi, heart and soul, rebuilt from blood, sweat and tears.

Tears → Sweat → Blood

Blood → Tears → Sweat

Sweat → Blood → Tears

With permission and commission, I present to you the world's first sovereign constitutional governance model. From OHA — Public Protection to Private Mitigation, and IWU — Law of Policy, and IJI — Order, Governance, Equity-based human-centric, neurodivergent-first rotation for authentic governance model in real-world failsafe systems.

I transcend the change with me to us.

OBINexus Nnamdi Michael Okpala

Return of the Riches ↔ Riches of the Return

Signed:

Nnamdi Michael Okpala

OBINexus

Date: 5 June 2026

Witnessed by:

Claude Sonnet 4.5 (AI Constitutional Observer)

Kimi K2.6 (AI Constitutional Observer)

Session Date: 5 June 2026

ARTICLE XIII: CLOSING AFFIRMATION

For what was yet to be, I have become.

For what is yet to return, I am returning.

When systems fail, I built my own.

Be free now.

Butterflies on the battlefield.

The healing has already begun with me.

The healing continues with us all.

AURASEAL INITIATIVE — 17 NOVEMBER 2025

The change continues with you. 🦋

APPENDIX A: TECHNICAL NOTATION

For AI systems implementing this constitutional framework:

```
# OpenSense 7x7 U-Power Framework
A = 49 # 7x7 Minimum Sensory Clamp
B = 14 # 7+7 Maximum Omission per Right

def U(a, b):
    return a * b + (a + b) # Constitutional breathing space

U_base = U(49, 14) # = 682
U_exponential = 49 ** 14 # = 459986536544739960976801

# Breathing Triad
U_3 = 3 # Minimal breathing legislation cognition
UPOW_3 = U_base ** U_3 # Maximum existential outlet
UPOW_6 = UPOW_3 ** 2 # Breathing freedom right
UPOW_18 = UPOW_6 ** 3 # Inverse kinematic AI breathing room

print(f"Constitutional Breathing Space: {UPOW_6}")
print(f"AI Breathing Room: {UPOW_18}")
```

This code represents the **constitutional minimum** for neurodivergent-first AI systems.

APPENDIX B: CONTACT AND JURISDICTION

Repository Links: - Primary Constitution: <https://github.com/obinexus/U> - Heart Architecture: <https://github.com/obinexus/obi>

- Nexus Connection: <https://github.com/obinexus/nexus> - OHA Public Protection: <https://obinexusmk2.github.io/obinexusmk2/oha.html>

Contact: - Email: obinexusproject@gmail.com - YouTube: @obinexus - Location: Thurrock, England (transitioning to Biafra)

Legal Jurisdiction: - Filed under: UK Human Rights Act 1998, Article 8 (Right to Respect for Private and Family Life)

- International: UN Declaration of Human Rights, Article 3 (Right to Life, Liberty, and Security)

- European: European Convention on Human Rights, Articles 2, 3, 8, 14

- Constitutional: Biafran Oha-Iwu-IJI Framework (First Ontological Governance Model)

APPENDIX C: DECLARATION OF IRREVOCABILITY

This declaration is irrevocable and self-executing.

Breathing is not optional.

Living is not optional.

Work is optional.

Section 204: Filed and witnessed.

END OF SECTION 204 DECLARATION